

24TRCV02604 24TRCV02604

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Case Number: 24TRCV02604 Hearing Date: August 4, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 4, 2026

Calendar No.

PROCEEDINGS

Felicia

Marie Mastroluca v. FCA US LLC, et al.

24TRCV02604

1. Felicia Mastroluca's Motion to Compel Further

Responses to Request for Production of Documents, Set One

TENTATIVE RULING

Felicia Mastroluca's Motion to Compel Further

Responses to Request for Production of Documents, Set One is granted, in part.

Background

Plaintiff's Complaint was filed on August 5, 2024. Plaintiff

alleges the following facts. Plaintiff alleges violations of the Song-Beverly Act.

Motion to Compel Further Responses to Requests for Production of Documents

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. (Code Civ. Proc., § 2031.210, subd. (a).) A response to an inspection demand may be inadequate because it is evasive or incomplete; contains an incomplete statement of compliance; an inadequate, incomplete, or evasive representation of inability to comply; or meritless or overly general objections to a demand. (Code Civ. Proc., § 2031.310, subd. (a).)

If a demanding party believes the responding party responded inadequately, the demanding party may move for an order compelling further response. (Code Civ. Proc., § 2031.310, subd. (a).) “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., § 2031.310, subd. (c).)

Meet and Confer

Plaintiff set forth a meet and confer declaration in substantial compliance with CCP § 2031.310(b)(2). (Declaration, Alessandro Manno, ¶¶ 16-30).

Motion to Compel

The Court notes that the parties did not schedule an informal discovery conference prior to the hearing and ruling upon of this motion. The Court elects to rule on this motion without an IDC because of the imminent trial date. The Court admonishes both parties and informs the parties that any future motions to compel further responses to written discovery

requests requires an IDC prior ruling on the motions.

Requests for Production of Documents, numbers 1, 16, 19, 20, and 21, are at issue in this motion.

Request 1 seeks all documents “referring to, relating to, or concerning the subject vehicle.” Plaintiff’s motion to compel a further response to Request 1 is granted. Defendant appears to state that it will comply with the request, but its response includes qualifications. Thus, it is unclear whether it is complying in full or in part. Plaintiff is entitled to a response that meets CCP § 2031.210 and CCP § 2031.230.

A party responding to an inspection demand shall respond to each demand with one of the following: a statement the party will comply with the demand, a representation the party lacks the ability to comply with the demand, or an objection. Code Civ. Proc., § 2031.210, subd. (a.) CCP § 2031.230 states: “A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.”

Requests 16 and 19 to 21 specifically seek documents related to Defendant’s investigation and analysis of the specific defects related to the same make, model, and year of Plaintiff’s vehicle. The definition of the types of documents sought is not overly broad and may lead to the discovery of admissible information. However, the Court narrows the time frame involved from the time that Plaintiff purchased the vehicle in October 1, 2023 to the present date.

The documents that are sought may lead to the discovery of admissible evidence that may be relevant to Plaintiff’s claims that Defendant had prior knowledge of the alleged defects to the ignition system, body system, engine, and electrical

system plaguing Plaintiff's vehicle, and violated the Song-Beverly Act by refusing to purchase the vehicle. The documents may also lead to the discovery of admissible evidence as to whether Defendant breached the implied warranty of merchantability by selling Plaintiff a vehicle with a known defect.

For example, in *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138, 154, the Court of Appeal held that the trial court did not err in refusing to exclude evidence with respect to vehicles other than Plaintiff's vehicle because Plaintiff's expert testimony was properly limited to the same type of transmission involved in Plaintiff's vehicle as well as the other vehicles at issue. Here, Plaintiff is attempting to pursue discovery related to similar defects that relate to the same year, make, and model as Plaintiff's vehicle.

Defendant asserts that further responses were served to these requests after the motion was filed. However, Defendant failed to provide any evidence to support this contention such as a declaration, copies of the response, and proof of service of the responses.

As to Requests 1, 16, and 19 to 21, the motion is granted, in part, subject to the time limitation noted above. The requests are designed to lead to the discovery of admissible evidence in this action. Defendant's responses are evasive, incomplete, and/or Defendant has failed to justify its objections.

Therefore, Defendant is ordered to serve further responses to Requests 1, 16, and 19 to 21, without objections, in compliance with the directions set forth within this order, within 20 days of this date.

Plaintiff is ordered to give notice of this ruling.